

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA CGM S.A.

Respondent

Response to CMA's motion to strike

On the first page of their motion CMA says: "Counsel for Respondent has conferred with Counsel for MTL, who stated that MTL opposes this motion." This is not the first time that CMA (to put it mildly) misstates matters. The following is a true and accurate exchange taken from the emails exchanged on this point:

On June 29th I wrote:

"I'm available to confer on July 2nd, any time before 12pm, so please send out the call information, so we can go over the specific points that you object to in the reply. I am sure you are aware of Alla's medical condition that existed during the time of her deposition and persisted during the briefing schedule, so we can discuss during the call..."

CMA refused to talk about this, and when I asked about the basis for their motion, they replied on July 1st:

"On the basis that they are improper. I see no use to debating this. Either you consent or you do not, in which case you have a right to reply."

One of the requests in their motion is to submit a sur-reply, and I certainly have no objection to this. However, as to the balance of their motion, the following is what I was hoping to explain to CMA had they agreed to confer.

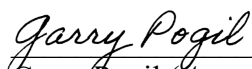
There is absolutely no prejudice to CMA as these two exhibits were in direct response to what they raised in their opposition and based on the documents previously provided and documents in CMA's possession. Furthermore, these documents (namely the profit concerning the two clients that MTL lost) could only be compiled and provided personally by Alla Solovyeva who had undergone major surgery on May 22nd with intensive treatment leading up to such. Medical proof of this can be provided for *in camera* review. CMA will not dispute the fact that Alla Solovyeva, in order not to delay the case, had to be lying down for a good part of her deposition due to her medical condition.

The first exhibit at issue (Ex. 55) supplements the previously provided Ex. 27A, which lists income derived from the "Kodryanka Transactions." Taking one transaction as an example, looking at the first transaction at page 3 of Exhibit 55, we see that the income derived is \$2,100. Then, for the job expense, there is an ocean freight number of \$529, and this is something that CMA has in its possession and can easily verify. The other expense that CMA does not have is \$825 for ground freight service, so this is an easy and reasonable computation of the profit.

The same argument applies to the second exhibit at issue (56), which corresponds to the previously provided exhibit 47.

July 10, 2024

Respectfully Submitted,


Garry Pogil (Attorney for the Complainant, MTL)